

CAPITAL ONE N.A. v ADAMS

24CF14747

PLAINTIFF'S MOTION TO DEEM MATTERS ADMITTED

Plaintiff Capitol One ("Plaintiff") sued Defendant Steven J. Adams ("Defendant") for the collection of a debt. Thereafter, Defendant filed an Answer. Now before the Court is Plaintiff's motion to deem admitted the matters specified in the Plaintiff's Requests for Admission ("RFAs").

On 02/14/2025, Plaintiff served by mail its first set of requests for admissions on Defendant. (Declaration of Gregory Parks ("Parks Decl.") ¶ 2, Ex. 1.) Requests were due within 30 days of receipt. As of the Plaintiff's motion, Defendant has not responded to the letter or provided any responses to the RFAs. Defendant has also not filed any opposition to the Plaintiff's motion.

Pursuant to Code Civ. Proc. section 2033.280:

(a) The party to whom the requests for admission are directed waives any objection to the requests, including one based on privilege or on the protection for work product under Chapter 4 (commencing with Section 2018.010). The court, on motion, may relieve that party from this waiver on its determination that both of the following conditions are satisfied:

1) The party has subsequently served a response that is in substantial compliance with Sections 2033.210, 2033.220, and 2033.230.

2) The party's failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect.

Further, the Court shall deem the facts admitted as truth, unless it finds that the party to whom the RFAs were directed, "has served, before the hearing on the

motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220.” (Code Civ. Proc. § 2033.280(c).)

Defendant has not served any response and has not provided any evidence to the court that the failure is a result of mistake, inadvertence, or excusable neglect.

Accordingly, Plaintiff’s Motion to Deem Matters Admitted is **GRANTED**.

The clerk shall provide notice of this ruling to the parties forthwith. The Court intends to sign the Proposed Order submitted by Plaintiff.

GIANOTTI v KLAUSE, et al

24CV47238

**DEFENDANT’S PETITION TO COMPEL BINDING ARBITRATION
AND STAY ALL PROCEEDINGS**

Before the Court is a second motion to compel arbitration filed by Defendants Downey Management Group, Inc. (“Downey”), Airola Road Vineyards, LLC (“Airola”), George Klaus (“Mr. Klaus and Birgit Klaus (“Ms. Klaus”) (collectively “Defendants”).

I. Factual and Procedural Background

Plaintiff alleges that Defendants Downey and Airola are joint employers with a unity in interest and ownership and that Downey owns Airola. (Complaint ¶ 22.) Upon information and belief, Downey Management owns Airola Road Vineyards. George Klaus is listed as the agent for both businesses. (*Ibid.*). Defendants own an 88-acre estate that operates as a vineyard and wedding venue. (*Id.* ¶ 23.) Defendants also own two residential properties on the estate, both of which operate as Airbnb rental properties. (*Ibid.*) Apparently, the entire estate is owned and operated by George and Birgit Klaus. (*Ibid.*)

On or about December 1, 2022, Defendants hired Plaintiff on a full-time basis as a caretaker at a rate of pay of approximately \$800.00 every two weeks, significantly below the California minimum wage of \$15.00 per hour. (Complaint ¶ 24.) Plaintiff was required to live in an on-site residential unit as a condition of employment. (*Id.* ¶ 25.) As such, Plaintiff was treated not as a tenant but as a licensee. (*Ibid.*) In her capacity as a caretaker, Plaintiff’s job duties and responsibilities included, but were not limited to, cleaning the rental properties, fountains, and pools, mowing the grass, nurturing plants and flowers, pruning trees, and pruning grapes. (*Id.* ¶ 26.)

Plaintiff alleges a number of wage and hour law violations. She also alleges that despite the fact that she was required to live on the premises as a caretaker, Defendants failed to secure the necessary permits to make the living space habitable. (Complaint ¶ 33.) Plaintiff was then allowed to live in one of the Airbnb units but was not allowed to unpack her belongings and was forced to accommodate Defendants’ various guests without being asked first. (*Id.* ¶¶ 34, 35.) Plaintiff was required to pay rent when she used an Airbnb unit. (*Id.* ¶ 37.) Apparently, Defendants also forced Plaintiff to participate in religious proceedings. (*Id.* ¶¶ 42-46.) After Plaintiff complained about the various wage and hour violations, her living conditions, and other matters, she had her hours significantly reduced and then she was constructively terminated. (*Id.* ¶¶ 50-52.)